

Bibha Bharti vs Uday Kumar on 4 September, 2008

Author: Mihir Kumar Jha

Bench: Mihir Kumar Jha

IN THE HIGH COURT OF JUDICATURE AT PATNA
C.R. No.876 of 2007
BIBHA BHARTI
Versus
UDAY KUMAR

2. 4.9.2008

In this case the grievance of the petitioner wife is against the order of the court below dated 17.1.2007 whereby and whereunder her prayer for deciding the application filed under section 24 of the Hindu Marriages Act was sought to be deferred at the insistence of the husband opposite party that in first instance, his application with regard to the wife living in adultery should be considered.

Counsel for the petitioner would submit that an application for claiming maintenance under section 24 was filed on 6.9.2001 and after the court had already prolonged the same for more than 4 ½ years, ultimately after hearing of the parties the order was reserved for its being delivered on 10.4.2006 but no such order was passed on 10.4.2006 and thereafter again a vexatious plea of the husband-opposite party was sought to be entertained leading to delay in disposal of the application of the petitioner under section 24.

This Court would find some
substance in the aforementioned submission

of the counsel for the petitioner. The whole object of section 24 of the Hindu Marriages Act is to provide immediate relief and in fact the time limit fixed under section 24 for passing an order of adinterim maintenance is only 60 days. In that view of the matter, whatever was the plea of the husband, the final order ought to have been passed by the court below in the year 2001 itself. This is infact absolutely inconceivable that such an application under Section 24 of the Act has remained pending for now more than 7 years. Added to it even an allegation of petitioner living in adultery, unless proved in course of the matrimonial case cannot be a ground for refusal of amount of maintenance in terms of Section 24 of the Hindu Marriage Act.

It has also been submitted by the counsel for the petitioner that in fact till date no such order has been passed and the petitioner is being harassed even for basic amenities in her life.

This Court taking into account all the aforementioned facts and especially the subsequent order dated 19.2.2007 rejecting frivolous application of the husband as with regard to making a false

allegation of a second marriage performed by the petitioner would direct the court below to pass a final order under section 24 of the Hindu Marriages Act within one month from the date of receipt/production of a copy of this order and payment of any amount that may be fixed by the court would date back to 6.9.2001 i.e. the date of filing an application.

This application is accordingly disposed of.

(Mihir Kumar Jha,J.) Surendra/